

STEVENS, J., concurring in judgment

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with functions in that area make them "easily identifiable target[s] for suits for civil damages." *Nixon v. Fitzgerald*, 457 U. S., at 753. Persons of wisdom and honor will hesitate to answer the President's call to serve in these vital positions if they fear that vexatious and politically motivated litigation associated with their public decisions will squander their time and reputation, and sap their personal financial resources when they leave office. The multitude of lawsuits filed against high officials in recent years only confirms the rationality of this anxiety.⁹ The availability of qualified immunity is hardly comforting when it took 13 years for the federal courts to determine that the plaintiff's claim in this case was without merit.

If the Attorney General had violated the provisions of Title III, as JUSTICE WHITE argued in *Keith*, he would have no immunity. Congress, however, had expressly refused to enact a civil remedy against Cabinet officials exercising the President's powers described in § 2511(3). In that circumstance, I believe the Cabinet official is entitled to the same absolute immunity as the President of the United States. Indeed, it is highly doubtful whether the rationale of *Bivens v. Six Unknown Federal Narcotics Agents*, 403 U. S. 388 (1971), even supports an implied cause of action for damages after Congress has enacted legislation comprehensively regulating the field of electronic surveillance but has specifically declined to impose a remedy for the national security wiretaps described in § 2511(3). See *id.*, at 396-397; *Bush v. Lucas*, 462 U. S. 367, 378 (1983). Congress' failure to act after careful consideration of the matter is a factor counseling some hesitation.

Accordingly, I concur in the judgment to the extent that it requires an entry of summary judgment in favor of former Attorney General Mitchell.

⁹The many lawsuits filed against Attorney General Mitchell for his authorization of pre-*Keith* wiretaps is only one example of such litigation. See *ante*, at 522, n. 6.